

Marlowe v. Coakley, 404 F. 2d 70 (CA9 1968). We granted certiorari to consider the important and recurring issue of prosecutorial liability under the Civil Rights Act of 1871. 420 U. S. 945 (1975).

II

Title 42 U. S. C. § 1983 provides that "[e]very person" who acts under color of state law to deprive another of a constitutional right shall be answerable to that person in a suit for damages.¹⁰ The statute thus creates a species of tort liability that on its face admits of no immunities, and some have argued that it should be applied as stringently as it reads.¹¹ But that view has not prevailed.

This Court first considered the implications of the statute's literal sweep in *Tenney v. Brandhove*, 341 U. S. 367 (1951). There it was claimed that members of a state legislative committee had called the plaintiff to appear before them, not for a proper legislative purpose, but to intimidate him into silence on certain matters of public concern, and thereby had deprived him of his constitutional rights. Because legislators in both England and this country had enjoyed absolute immunity for their official actions, *Tenney* squarely presented the issue of whether the Reconstruction Congress had intended to

¹⁰ Title 42 U. S. C. § 1983, originally passed as § 1 of the Civil Rights Act of 1871, 17 Stat. 13, reads in full:

"Every person who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory, subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress."

¹¹ See, e. g., *Pierson v. Ray*, 386 U. S. 547, 559 (1967) (Douglas, J., dissenting); *Tenney v. Brandhove*, 341 U. S. 367, 382-383 (1951) (Douglas, J., dissenting).